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California legislators advance bills aimed at toxic chemicals, pesticides, lead

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Los Angeles area legislators are leading the charge to combat chemicals connected to leukemia, ADHD, hearing loss and breast cancer — and more — through a series of proposed environmental laws.

Assemblymember Laura Friedman, D-Burbank, is pushing a bill to ban the herbicide paraquat, which has been linked to a 64% increase in the risk of Parkinson's disease.

Assemblymember Jesse Gabriel, D-Encino, is backing an effort to ban six harmful food dyes from meals provided in public schools. Chris Holden, D-Pasadena, is leading an effort to crack down on lead exposure in schools. And Assemblymember Luz Rivas, D-Arleta, and Assemblymember Josh Lowenthal, D-Long Beach, are sponsors of a bill to remove two cancer-causing chemicals from plastic packaging.

All four laws met a key deadline to clear the Assembly floor this month and are now headed to the state Senate.

Meanwhile, the state Senate passed a bill by Senator Ben Allen's, D-Santa Monica, that would close a loophole in the state's plastic bag ban. A companion bill already passed the Assembly, so this law is now poised to advance to Governor Gavin Newsom's desk.

Collectively, all five pieces of legislation have the potential to dramatically improve health outcomes for children, farmworkers, and Californians in general, while giving mother nature a break from poisons and pollution.

Friedman's AB 1963 would ban paraquat starting on Jan 1, 2025, a chemical she says is "easily the most toxic herbicide still in use in California today."

The chemical is prohibited in more than 60 nations, but continues to be widely used to grow crops like corn, soybeans, cotton, almonds and peanuts across California. In addition to the elevated risk of Parkinson's, paraquat has been connected to high blood pressure, heart failure, kidney failure, non-Hodgkin's lymphoma and childhood leukemia.

AB 1963 has the support of famous labor leader Dolores Huerta who spoke before the state Assembly about the disproportionate impact the chemical has on Latino farmworkers.

"This dangerous weedkiller has been used since the 1960s, endangering millions of essential agricultural workers, their families, and local residents," she said. "Farmworkers feed America's families. We must do better by them."

Local legislators are also trying to do better by California's kids, whose developing brains and immune systems are particularly vulnerable to the harmful effects of chemicals.

Assemblymember Holden wants to see a crackdown against the state's longtime enemy of lead in drinking water — a potent neurotoxin that can cause irreversible damage to children's intellectual development, hearing and ability to concentrate.

In 2018, Holden authored a law requiring licensed child care centers in the state to test their tap water for lead contamination. The results came out last year and found that one in four centers had lead levels above the allowable threshold.

Now he is pushing AB 1851, which would set a goal of zero lead in drinking water at schools and in childcare

facilities, and fund a program to test for and clean up lead in drinking water at ten school districts.

"Lead consumption among youth and disenfranchised communities occurs at a higher rate," Holden said in a statement on the bill. "Assisting schools with the resources and appropriate standards to ensure the water our children drink is safe will help us protect our schools, students and communities."

Assemblymember Gabriel is also working to oust chemicals that can harm a child's brain, behavior and immune systems. He authored AB 2316, which would ban several food dyes–Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3–as well as the food additive titanium dioxide from meals served in public schools.

The dyes have been found to cause neurobehavioral problems, while titanium dioxide has been linked to DNA damage and immune system harm.

"As a lawmaker, a parent and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity and neurobehavioral harms," Gabriel said. "This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Lastly assembly members Rivas and Lowenthal are sponsoring AB 2761 to get tougher on the use of chemicals in plastic packing.

The bill was authored by Assemblymember Gregg Hart, D-Santa Barbara, and would ban PVC (Polyvinyl Chloride) and PFAS (Per- and Polyfluoroalkyl Substances) in plastic packaging sold or distributed in the state. The chemicals have been linked to an elevated risk of multiple cancers including liver, brain, lung and breast cancer.

Senators Allen and Catherine Blakespeare, D-Encinitas, are teaming up to close a key loophole in the state's 2014 plastic bag ban by removing the exemption for thicker reusable plastic bags. After the 2014 ban passed, these thicker bags largely replaced flimsy single use plastic bags at grocery stores — but more often than not these reusable bags still ended up in the trash.

Now a decade later, Californians are throwing out nearly double the amount of plastic waste on an annual basis.

"These thicker plastic bags may be called reusable, but most of us are only using them once," said Los Angeles County Supervisor Janice Hahn. "This loophole has undermined the state's effort to reduce our use of single-use plastics and ironically made the problem worse. I appreciate Senator Ben Allen and his colleagues for taking this on and taking a stand against the plastics industry."

Earlier this month the Board of Supervisors passed a resolution authored by Hahn to put their support behind the bill.

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